

Court No. - 3

Case :- WRIT - C No. - 17382 of 2011

Petitioner :- Anwarul Haq

Respondent :- State Of U.P. And Others

Petitioner Counsel :- O.P. Gupta

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Amitava Lala, J.

Hon'ble Sanjay Misra, J.

As prayed for by the learned counsel for the petitioner let the matter appear in the list of supplementary fresh cases on 4.4.2011.

Order Date :- 25.3.2011

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Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Counter affidavit filed today be kept with the record.

The petitioner's contention is that he is not running a cane-crusher or private tube-well or any other machinery or mill except domestic lights, fans etc. Therefore, it cannot be construed that the petitioner is utilising his meter for residential purpose as well as for commercial purpose.

The respondents have come with the case that the power corporation raided the premises of the petitioner and caught him red handed as he was using domestic connection with commercial purposes. So far as private tube-well is concerned, it is sanctioned in the name of his father. On the fateful day the tubewell was operative by a fresh motor, therefore, the case of the petitioner comes under Section 135 of the Electricity Act, 2003 and an FIR has been registered and after calling evidence the I.O. has submitted a report under Section 173(2) Cr.P.C. Under Clause 6.8 and 8.1 of U.P. Electricity Supply Code, 2005, the answering respondent prepared the provisional assessment notice and invited objection but when no objection was filed towards the provisional assessment, final assessment order has been passed imposing dues upon the petitioner for a sum of Rs.40,587/-.

The petitioner has contended that no notice or provisional assessment has been made, therefore, he did not get any opportunity to submit his case. However, when the final assessment is made, the petitioner is entitled to prefer an appeal regarding his grievance made herein.

Against this background, the writ petition is disposed of with the direction upon the petitioner to file an appeal before the appropriate authority within a period of one month from the date of obtaining a certified copy of the order, which will be considered and decided by the authority concerned after giving fullest opportunity of hearing to the petitioner and by passing a reasoned order thereon within a period of one month thereafter.

No order is passed as to costs.

Order Date :- 18.4.2011

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